Temporary
4007

Executive Order

AUTHORIZING THE ALIEN PROPERTY CUSTODIAN TO SELL CERTAIN PROPERTY UPON THE NEW YORK STOCK EXCHANGE

By virtue of the authority vested in me by an Act of Congress entitled "An act to define, regulate, and punish trading with the enemy and for other purposes", approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendments to such Act embodied in "An act making appropriations to supply urgent deficiencies in the appropriations for the fiscal year ending June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such act embodied in "An act making appropriations to supply deficiencies in appropriations for the fiscal year ending June 30, 1919 and prior fiscal years on account of war expenses, and for other purposes", approved November 4, 1918, and all other amendments thereto, to make certain orders such as that herein contained, I hereby, in the public interest, make the following determination, order, rule and regulation:

The Alien Property Custodian is hereby authorized to sell upon the New York Stock Exchange, at such time as to him or to his authorized agent may seem advisable, without public or other advertisement, ninety-seven thousand, two hundred ninety-five shares of the capital stock of the Standard Oil Company of New Jersey, a corporation organized under the laws of the State of New Jersey, of the par value of twenty-five dollars ($25.00) per share which said shares were heretofore required to be conveyed, transferred, assigned and delivered to the Alien Property Custodian as the property of Carl Schutte, Louise Braesecke, Gustav Schutte, Wilhelm A. Riedemann, Erwin C. Riedemann and Meta Schutte under the provisions of the said "Trading with the Enemy Act, provided that no part of the said stock hereby authorized to be sold, shall be sold at a price less than twenty-five dollars ($25.00) per share.

My reasons for the foregoing determination and order are:

First: That the dividends paid upon this stock are so small as to be disproportionate to the investment as based upon the current market quotations, and it does not appear that the earnings of the corporation are such as to justify an increase in the dividend rate, and that an investment of the proceeds of the sale in Liberty Bonds or Certificates of Indebtedness of the United States Government would produce a yield greatly in excess of that derived from the dividends upon the said stock.

Second: That a public or other advertisement of the sale of the said stock would have a tendency to defeat the purpose of the sale by causing a depression in the market price.

Third: That an attempted sale at auction would be a useless formality, would involve unnecessary expense and inconvenience and would cause such delay as to seriously imperil the realization of an adequate price.

CALVIN COOLIDGE

THE WHITE HOUSE,
May 8, 1924.

[No. 4007.]

GOVERNMENT PRINTING OFFICE